

Court No. - 40

Case :- WRIT - C No. - 13920 of 2018

Petitioner :- Raj Narayan Mishra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rupesh Kumar Singh, Praveen Kumar Singh

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Learned counsel for the petitioner is permitted to serve a copy of the writ petition on the learned counsel for the respondent no.4 during the course of the day.

Put up tomorrow as fresh.

Order Date :- 17.4.2018

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Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner.

The petitioner is raising a billing dispute and the consequential recovery being made from the petitioner on the ground that this is a case of excessive billing whereas the consumption of electricity is far less.

From the record it appears that some theft case was registered against the petitioner and in order to get it compounded he tendered a cheque of Rs.1 lakh that bounced. In view of the cheque having been dishonoured it appears that further proceedings have been undertaken and now the petitioner is before this Court under Article 226 of the Constitution of India.

So far as theft is concerned the same is compoundable under Section 152 of the U.P. Electricity Act, 2003.

So far as assessment or billing disputes are concerned they are governed by the provisions of an assessment by the Executive Engineer under Section 126 of the Electricity Act, 2003 and if a person is aggrieved thereafter he can file an appeal before the higher Forum under Section 127 of the Act. Apart from this the Consumer Grievance Redressal Forum is also available to the petitioner under Clause 7.10 of the U.P. Electricity Supply Code, 2005. If only a provisional assessment has been made then the final assessment can still be made by the Executive Engineer and if it is a pure billing dispute then this can be raised before the Executive Engineer under Clause 6.5 of the Supply Code, 2005. In view of the variety of the remedies available to the petitioner the petitioner may avail any of such remedies which may be available to him in accordance with law. We are not inclined to entertain this factual dispute pertaining to billing and the discrepancies in the amount alleged to be recovered from the petitioner. In case any authority before whom the petitioner approaches passes an order then the recovery proceedings shall be abide by the same.

The writ petition is consigned to records with the said observations.

Order Date :- 18.4.2018

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